2-1 Personal Information

Point!

1 Personal Information

(1) ([1]**Personal information**) : Any data or information related to a natural person who can be identified directly or indirectly by linking it with other data.
<Example> name, address, date of birth, gender, phone number, national ID number, passport number, driving license, or any data that identifies psychological, health, economic identity.

- Among the different types of personal information, name, address, date of birth, and gender are referred to as the ([2]**Four Basic Items**), while numbers such as those on passports, driver's licenses, or National IDs are known as ([3]**Personal Identification Codes**).
- Information that requires careful handling to prevent prejudice and other disadvantages (for example, race, creed, social status, medical history, and criminal record) is referred to as ([4]**Special Care-Required Personal Information**).

(2) ([5]**Act on the Protection of Personal Information**) : A law that stipulates the proper handling of personal information.

(3) Provision of Personal Information to Third Parties

- The Act on the Protection of Personal Information states that one cannot provide the personal information of an individual to a third party without the individual's consent. However, in the following cases, it is permissible to provide personal information without obtaining the individual's consent.
  - [1] When provision is based on laws and regulations.
  - [2] When necessary for the protection of national security or public interest.
  - [3] When necessary for the protection of human life, body, or property.
  - [4] When especially necessary for public health or the healthy development of children.
  - [5] When cooperating with national or local governments, etc.

2 Protection of Privacy and Image Rights

(1) ([6]**Right to Privacy**) : The right of an individual to protect personal information that the individual does not want others to know.

(2) ([7]**Image Rights**) : The right of an individual to prevent others from photographing or using their face or appearance without permission.

(3) ([8]**Publicity Rights**) : A right that protects the economic interests of celebrities in their likeness, among other things.

*These rights are recognized not by law but through court ([9]**precedents**).

3 Protection of Personal Information in Corporations and Organizations

(1) ([10]**Privacy policy**) : A policy that stipulates how companies and organizations manage personal information.

(2) ([11]**Personal Data Protection Center License**) : the license obtained by companies from the regulatory authority (Personal Data Protection Center) to ensure compliance with the law.

(3) ([12]**Prior Approval System**) : A method in which a provider does not collect user data or offer a service to a user unless prior consent is given.

(4) ([13]**Opjection System**) : A method in which a service provider continues to offer a service to the user until the user requests the provider to discontinue the service.

Warm Up

Answer the following questions.

(1) Choose all the items from **A** to **D** that can be considered personal information as defined by the Act on the Protection of Personal Information.

A Email address **B** Fingerprint data **C** Address of a deceased person

D Passport number

(2) The following statements **A** to **D** describe personal information and privacy. Mark "○" if the statement is appropriate, and "×" if it is inappropriate.

A If everyone in a photo is your family member, you can upload group photos to social media without permission.

B Posting information such as the economic status or health status of a person on social media without his premession, thinking it might aid the investigation, is not a violation of the Act on the Protection of Personal Information.

C Although a driver's license number or a National ID Number consists merely of a sequence of digits, it can be considered personal information because it allows for the identification of an individual when combined with other information.

D It is acceptable to print a photo of your favorite celebrity on a T-shirt yourself and sell the T-shirt online.

Explanation

(1) Personal information refers to information concerning a living individual. Information about deceased individuals is not considered to be personal information. Therefore, **A**, **B**, and **D**

(2) **A** Uploading a person's photo to the internet or social media without their permission constitutes a violation of image rights. Therefore, ×

B Past criminal records and medical histories are referred to as special care-required personal information. As a general rule, they should not be provided to third parties without the individual's consent. Therefore, ×

C Personal information refers to data related to a living individual and includes information that can be used to identify an individual when combined with other information. Therefore, ○

D The likeness of famous people (such as celebrities or athletes) holds economic value, and one should not sell that likeness for profit without permission. Therefore, ×

Try

1 Answer the following questions.

(1) What is the term for information related to living individuals?

(2) From among (1), what is the term for the collective reference to name, address, date of birth, and gender?

(3) From among (1), what is the term for the numerical information found in items like passports, driver's licenses, and My Number cards?

(4) Since the likenesses of celebrities hold economic value, celebrities possess rights recognized to protect the economic benefits arising from their popularity. What is the term for these rights?

(5) What is the term used for the licenses granted to companies or organizations that implement appropriate protection measures for personal information?

(6) Choose the appropriate terms for [1] and [2] to complete the following sentence.

> When providing services to users, the system where services are not provided without prior consent is called the ([1]) system, while the system where services continue to be provided until the user requests the provider to stop is called the ([2]) system.

2 Answer the following questions.

(1) Choose one correct statement regarding personal information from the options **A** to **C** below.

A Personal information is protected until 50 years after the individual's death.

B Although your passport, driver's license, and National ID Number information are merely sequences of numbers, they still constitute personal information.

C The names, addresses, dates of birth, and gender of individuals that have already been published in newspapers or on the internet do not constitute personal information.

(2) Choose one correct statement regarding image rights from the options **A** to **D** below.

A The right of an individual to protect personal information that the individual does not want others to know.

B The right to protect economic benefits arises from the fact that the likeness of a celebrity possesses economic value.

C The right of an individual to prevent others from photographing or using their face or appearance without permission.

D The individual's right to the protection of literary, artistic, and scientific works.

(3) The following statements **A** to **D** describe personal information and privacy. Mark "○" if the statement is appropriate, and "×" if it is inappropriate.

A Taking a photo of a portrait of a famous person that you drew yourself and saving it on your smartphone does not violate the Act on the Protection of Personal Information.

B If a person is your friend, you can upload a photo of their face to social media without permission.

C The transfer of personal information of an individual to third parties without the consent of the individual is prohibited.

D It's permissible to sell fan merchandise of your favorite celebrity if you create it personally.

Exercise

1 From the following options **A** to **L**, choose the phrases that best fit into the blanks [1] to [6].

In the context of the Act on the Protection of Personal Information, ([1]) refers to information that can identify a living individual. Among these, important pieces of information that are also used for identity verification are referred to as the four basic items, which include ([2]), ([3]), ([4]), and ([5]). Furthermore, information that can identify an individual when combined with other information is also considered to be ([1]). Examples include ([6]), which refers to number-based information such as driver's license numbers and My Number.

A	Name	**B**	Address	**C**	Date of birth	**D**	Age
E	Gender	**F**	Telephone number	**G**	Email address	**H**	Anonymized information
I	Personal Identification Code	**J**	Special Care-Required Personal Information	**K**	Personal information	**L**	Privacy

2 Answer the following questions.

(1) Choose all the items from **A** to **D** that can be considered personal information as defined by the Act on the Protection of Personal Information.

- **A** A nickname for use on social media made from letters and numbers
- **B** Information such as the names and addresses of foreigners residing in foreign countries
- **C** Information such as weather conditions and air tempreture.
- **D** Biometric data such as iris and fingerprints.

(2) Choose one correct statement regarding publicity rights from the options **A** to **D** below.

- **A** The right of an individual to protect personal information that the individual does not want others to know.
- **B** A right that protects the economic interests of celebrities in their likeness, among other things.
- **C** The right of an individual to prevent others from photographing or using their face or appearance without permission.
- **D** The right to protect one's thoughts and feelings as expressed in the form of a work.

(3) The following statements **A** to **D** describe behavior related to personal information and privacy. Mark "○" if the statement is appropriate, and "×" if it is inappropriate.

- **A** I received an email asking to verify my personal information from an unknown email address, so I replied to the contact provided in the email.
- **B** I shared widely on social media the personal information of an individual rumored to be the perpetrator in a crime. I thought my action would aid in the criminal investigation.
- **C** After paying the admission fee and entering the concert, I took a photo of the singer with my smartphone and posted it on social media.
- **D** After destroying the list of final test scores with a shredder, I discarded of the shredded documents as combustible waste.